prosecution as punishment.

This is exactly what has been happening. If former BJP spokesperson Nupur Sharma faces FIRs in non-BJP-ruled states for her offensive comment on the Prophet, BJP leaders are demanding the arrest of TMC MP Mahua Moitra for her description of Goddess Kali during an India Today Conclave in Kolkata. Meanwhile, Mohammad Zubair, co-founder of a fact-checking website, has been spending time in police and judicial custody for over two weeks after being charged under Section 295A, among other IPC provisions, by police teams of Delhi and Uttar Pradesh. The complainants say a tweet posted by him in 2018 allegedly hurt their religious sentiments.

In fact, social media storms, often curated with political motives, have goaded the police into action. For instance, outrage erupted in social media in Assam when an actor, dressed as Lord Shiva, highlighted the issue of rising fuel price in a street play in Nagaon. He was arrested by the police and was released later at the intervention of CM Himanta Biswa Sarma, who publicly commented: "*Nukad Natak* on current issues is not blasphemous. Dressing up is not a crime unless offensive material is said."

But not everyone gets this lucky—actors, authors, filmmakers and comedians are regularly haunted by the spectre of Section 295A. "The reasonability of its application must not be left at the discretion of police. I feel the need of a Supreme Court judgment to settle four corners of reasonable restrictions while protecting fundamental right to speech and expression. This provision is keeping a hanging sword over people," says Justice Govind Mathur, former chief justice of Allahabad High Court.

What's more worrying is that the scope of 295A is expanding beyond religion. On July 11, a 20-year-old was arrested in Kannauj in Uttar Pradesh for allegedly posting an objectionable photograph of chief minister Yogi Adityanath on Facebook. A case against him under sections 153, 295A, 505 of the IPC and section 67 of Information Technology (IT) Act was registered. Section 295A has been used against publication of material or making of films on historic figures like Shivaji and Rani Padmavati.

BLASPHEMY LAWS IN INDIA

There is no specific law against blasphemy in India. Chapter 15 of the Indian Penal Code–from Section 295 to 298–deals with "offences relating to religion". Section 295A is the closest to the provisions of an anti-blasphemy law. Section 153, 153A and B deals with hate crimes

SECTION 295
When applied: If any person intentionally damages, destroys or defiles any religious object deemed to be sacred by followers of any religion in India, including objects other than idols and books
Punishment: Jail up to two years or fine, or both

SECTION 295A
When applied: If a person maliciously by words spoken or written or signs or by visible representation insults or attempts to insult religious sentiments of any class of citizens of India
Punishment: Jail for three years or fine, or both

SECTION 296
When applied: If a person intentionally causes disturbance to any lawful religious assembly and ceremonies
Punishment: Jail

CURRENT INTERPRETATION OF SECTION 295A DOES NOT REQUIRE THE GOVERNMENT TO SHOW RELIGIOUS SENTIMENTS WERE HURT. MERE POSSIBILITY LEADS TO RAMPANT FILING OF FIRs

EVOLUTION OF THE LAW

The section was introduced by the British government in 1927. One Mahashay Rajpal had written a brochure named 'Rangila Rasul' in 1926 based on the life of Prophet Muhammad. According to Muslims, it insulted the Prophet, leading to widespread violence in Lahore. However, the Punjab HC had acquitted Rajpal, as the IPC lacked the provision to punish blasphemous acts. Rajpal was later assassinated, and the government thought that a law should be enacted so that people have a legal recourse against religious insults and don't take the law into their own hands.

Independent India continued with Section 295A, though it has neither prevented people from making outrageous comments nor stopped violence. At the time of enactment nearly a century ago, the drafting committee had voiced concerns over the broad wording of Section 295A and predicted that it might be used to target not just the "scurrilous scribbler", but also religious dissent. It has been proven right.

In 1957, in response to a challenge to Section 295A, the SC held that it was constitutionally valid since, in accordance with Article 19(2) of the Constitution, it was a "reasonable restriction" upon the right of freedom of speech, "in the interests of public order". Later,